

ance of an interest, is merely voidable; but where it does not take effect as an assurance by delivery of the deed, as in a power of attorney (*j*), then it is actually void. Lord Mansfield, however, subjoined the qualification, that if a case should arise where it would be more beneficial to the infant that the deed should be considered as void, as if he might incur a forfeiture, or be subject to damage, or a breach of trust in respect of a third person (*k*), unless it was *deemed void, the reason of an infant's privileges would in such case warrant an exception from the rule (*a*). Where the instrument *carries no solemnity with it*, equivalent to feoffment or delivery, the validity of the act must then depend on the question how far the assurance promotes the interest of the infant (*b*).

[12. **Covenant by an infant.** — A covenant by an infant, if for his benefit, is not void but only voidable; and a covenant by an infant *feme*, in contemplation of her marriage, to settle her property to be acquired during the coverture, is binding until it is avoided; and the *feme* may, after attaining twenty-one, and during her coverture, either avoid the covenant or ratify it as to any property for the time being belonging to her for her separate use, but prior to the recent Act her ratification would not bind property acquired by her after the time of such ratification (*c*). Since the Married Women's Property Act, 1882 (*d*), it is conceived that the ratification by the *feme covert* of the covenant would bind not only the separate property she had then acquired, but any separate property she might thereafter acquire during the coverture.

13. **Appointing an attorney.** — By a recent Act, a married woman, whether an infant or not, has power, as if she were unmarried and of full age, by deed to appoint an attorney on

(*j*) See Br. Ab. "Covert. and Inf." pl. 1; Whittingham's case, 8 Rep. 45, a.

(*k*) *Quere* if a Court of law could notice a breach of trust. See Warwick v. Richardson, 10 M. & W. 295. [But see now 36 & 37 Vict. c. 66, s. 24.]

(*a*) Zouch v. Parsons, 3 Burr. 1807.

(*b*) Humphreston's case, 2 Leon.

216; and see Lloyd v. Gregory, Cro. Car. 502; Co. Lit. 51, b; Grange v. Tiving, Sir O. Bridg. 117.

[(*c*) Smith v. Lucas, 18 Ch. D. 531; Willoughby v. Middleton, 2 J. & H. 344; Burnaby v. Equitable Reversionary Interest Society, 28 Ch. D. 416.]

[(*d*) 45 & 46 Vict. c. 75.]